

TENTATIVE RULINGS 5-13-26
Department R17- Judge Gilbert G. Ochoa

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

If you do not have internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the Administrative Assistant. You may appear in person at the hearing but personal appearance is not required and remote appearance by CourtCall is preferred during the Pandemic. (See www.sbcourt.org/general-information/remote-access)

If you wish to submit on the ruling, call the Court call the Court, check-in and state that you will be submitting on the Tentative, and your appearance is not necessary. But you must check in.

If both sides do not appear, the tentative will simply become the ruling.

If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling.

If one party wants to argue, Court will hear argument but will not change the tentative.

If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court.

This procedure is meant to minimize your waiting time in Court.

KARLA IVETTE CARRILLO

v.

SOLAMONTE OWNER, LLC

Motion: Demurrer and Strike

Moving Party: Defendant Solamonte Owner, LLC

Responding Party: Plaintiff Karla Ivette Carrillo

Discussion – Demurrers

Ninth cause of action for violation of the CLRA. Plaintiff alleges by placing the property for rent and advertising the property, Defendants represented the property was fit for human occupation. However, it was not fit from the time Plaintiff initially moved in due to the various conditions listed above. Defendants violated the CLRA (Civ. Code, §1750 *et seq.*) by engaging in deceptive and unfair business practices throughout Plaintiff's tenancy. Defendants knowingly misrepresented the condition of the property by concealing these issues. Defendants further acted

unfairly by ignoring Plaintiff's repeated complaints and refusing to remedy these hazardous conditions. Plaintiff was subjected to dangerous living conditions through deceptive and unethical means. Plaintiff was harmed, suffering physical damages, emotional turmoil, and economic damages. (Complaint, ¶¶182-196.)

The CLRA is codified at Civil Code section 1750 *et seq.* Civil Code section 1770 describes 24 “unfair methods of competition and unfair acts or practices” that are deemed unlawful if undertaken by “any person in a transaction intended to result or which results in the sale or lease of goods or services to any consumer.” A plaintiff may recover under the CLRA when it is established that they are a consumer who suffers any damage as a result of the use or employment by any person of a method, act, or practice declared unlawful in section 1770. (Civ. Code, § 1780.)

To state a claim under the CLRA, the consumer must have suffered damages because of the use or employment by the person of any method, act or practice declared unlawful. (Civ. Code § 1780; *Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 641 [“[A] consumer must experience some damage, some type of increased costs, as a result of the [unlawful act] in order to have standing pursuant to section 1780(a)”].) Civil Code section 1780, subdivision (a), states, “Any consumer who suffers any damage as a result of the use or employment by any person of a method, act, or practice declared to be unlawful by Section 1770 may bring an action against that person ...” Civil Code section 1770, subdivision (a)(7) provides representing goods or services are of a particular standard, quality, or grade if they are not is another unlawful method of competition/unfair or deceptive practice. Subdivision (a)(16) representing the subject of a transaction has been supplied in accordance with a previous representation when it has not is another unlawful method of competition/unfair or deceptive practice. Subdivision (a)(19) provides

inserting an unconscionable provision in the contract is similarly an unlawful method of competition/unfair or deceptive practice.

Causes of action pled under the CLRA must be stated with reasonable particularity, a more lenient pleading standard than applied to common law fraud claims. (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261.)

Defendant argues the complaint fails to allege any specific facts demonstrating how Defendant's conduct violated the CLRA and caused Plaintiff harm. Defendant contends the allegations are overly conclusory and lack sufficient context.

Plaintiff alleges Defendant held out the property as fit for human habitation when it clearly was not given the list of alleged conditions at the property. Sufficient particularity (less than the specificity required for fraud-based claims) is pled. The Court overrules the demurrer to the ninth cause of action.

Tenth cause of action for intentional influence to vacate. Plaintiff alleges Defendants used force, willful threats, and menacing conduct that interfered with Plaintiff's quiet enjoyment of the premises and created an apprehension of harm. Plaintiff is informed and believes Defendants engaged in a pattern and practice of harassing Plaintiff with intention of influencing her to vacate the property. (Complaint, ¶201.) "Plaintiff alleges the Defendants have harassed the Plaintiff by refusing to provide repairs, making threatening responses from the Defendants' attorney." (*Ibid.*) This conduct was undertaken with the intention of interfering with Plaintiff's quiet enjoyment and of leaving Plaintiff afraid of eviction and further retaliation. As a result, Plaintiff has suffered general and special damages. Defendants by and through their respective managing agents acted intentionally and maliciously for purpose of forcing Plaintiff to vacate. (Complaint, ¶¶202-205.)

This cause of action is brought under Civil Code section 1940.2, subdivision (a)(3), which provides:

It is unlawful for a landlord to do any of the following for the purpose of influencing a tenant to vacate a dwelling...(3) Use, or threaten to use, force, willful threats, or menacing conduct constituting a course of conduct that interferes with the tenant's quiet enjoyment of the premises in violation of Section 1927 that would create an apprehension of harm in a reasonable person. Nothing in this paragraph requires a tenant to be actually or constructively evicted in order to obtain relief.¹

Defendant argues Plaintiff failed to cite any specific examples of threats, harassment, or prohibited actions, instead cutting and pasting allegations from the sixth cause of action for the breach of quiet enjoyment. In opposition, Plaintiff argues the alleged failures to repair support a reasonable inference that Defendant intended to pressure Plaintiff to vacate or relinquish her rights.

The allegations here are simply too vague to support this claim. Failure to repair is not the same thing as threatening or menacing conduct. The Court sustains the demurrer to the tenth cause of action, but allows 15 days leave to amend as this defect is potentially curable.

Eleventh cause of action for retaliatory eviction. Plaintiff alleges she has not been in default of the rent at all material times. Plaintiff suffered and continues to suffer mental stress, severe emotional distress, property damage, anxiety, annoyance and discomfort, and fear of safety and/or physical pain and injury. (Complaint, ¶¶209, 211.)

In connection with this cause of action, Plaintiff also cites several subdivisions of Civil Code section 1942.5. These provisions prohibit eviction, rent increases, and more within 180 days after certain triggering events, such as complaints about tenantability and more.

As with the prior claim, the allegations here are too vague as to demonstrate Plaintiff suffered any "retaliatory eviction." This is especially confusing because paragraph 1 of the

¹ Civil Code section 1927, in turn, provides: "An agreement to let upon hire binds the letter to secure to the hirer the quiet possession of the thing hired during the term of the hiring, against all persons lawfully claiming the same."

complaint alleges Plaintiff remains a tenant at the unit. If Plaintiff has not been evicted then it is difficult to see how she can bring a retaliatory eviction claim, but I reluctantly sustain the demurrer to this claim with 15 days leave to amend in case Plaintiff is trying to plead one of the other violations found in section 1942.5 rather than retaliatory eviction.

Twelfth cause of action for unjust enrichment. Plaintiff alleges Defendants collected rent for the subject property despite knowingly failing to address numerous severe habitability issues as described. Despite repeated complaints, Defendants took no adequate measures to remedy these conditions, forcing Plaintiff to endure unsanitary and unsafe living conditions for an extended period. Plaintiff contacted a former tenant of the unit and learned the defective conditions, specifically the ongoing pest infestation, had been present for several years prior to Plaintiff's tenancy. It would be unjust and inequitable for Defendants to retain the benefits of the rent payment without providing appropriate restitution. Plaintiff has suffered and continues to suffer actual and consequential damages, including but not limited to diminution in value of the leasehold interest, emotional distress, physical injuries, and out of pocket expenses. (Complaint, ¶¶218-224.)

“Although some California courts have suggested the existence of a separate cause of action for unjust enrichment, this court has recently held that ‘[t]here is no cause of action in California for unjust enrichment.’ Unjust enrichment is synonymous with restitution.” (*Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138, citations omitted; See *Peterson v. Celco Partnership* (2010) 164 Cal.App.4th 1583—a 4th Dist., Div. 3 case suggesting there is a separate cause of action for unjust enrichment based on the Court's outlining of the elements of such a claim.) Under *Peterson*, the elements of an unjust enrichment claim are the “receipt of a benefit and [the] unjust retention of the benefit at the expense of another.” (*Peterson, supra*, 164

Cal.App.4th at p. 1593; See also *Hirsch v. Bank of America, N.A.* (2003) 107 Cal.App.4th 708, 721-22, [Based on equitable principles of restitution, the claim for unjust enrichment survived demurrer because banks collected and retained excessive fees passed through to them by title companies at the expense of the plaintiffs].) “A plaintiff may not, however, pursue or recover on a quasi-contract claim if the parties have an enforceable agreement regarding a particular subject matter.” (*Klein v. Chevron U.S.A.* (2012) 202 Cal.App.4th 1342, 1388.) “[I]f a plaintiff was uncertain as to whether the parties had entered into an enforceable agreement, the plaintiff would be entitled to plead inconsistent claims predicated on both the existence and absence of such an agreement.” (*Ibid.*)

Defendant argues the unjust enrichment claim fails because it is not a proper cause of action and because Plaintiff has not properly pled a restitution claim. However, Plaintiff adequately alleges Defendant received and retained rent payment (a benefit) and unjustly retained it while failing to provide habitable living quarters. Plaintiff may allege this as an alternative to a contractual claim. The Court overrules the demurrer to the twelfth cause of action.

Thirteenth cause of action for fraud and deceit. Plaintiff alleges Defendants engaged in fraud and deceit by misrepresenting and concealing material facts regarding the condition of the subject property, including numerous habitability defects as described. They knowingly leased the property to Plaintiff under false pretenses. Plaintiff repeats her allegations that a former tenant indicated some issues had been present several years before Plaintiff’s tenancy. Defendants further misled Plaintiff by willfully failing to remedy the habitability issues, despite receiving multiple complaints, government-issued citations, and formal notices identifying urgent and hazardous infestations requiring immediate pest control. Through these intentional omissions and representations, Defendants induced Plaintiff to enter into and remain in a tenancy she would not

have accepted had the true condition been disclosed. As a direct and proximate result of Plaintiff's reasonable reliance on Defendants' misrepresentations, Plaintiff was subjected to hazardous and inadequate band-aid repairs, knowingly performed by Defendants as part of a deliberate scheme to defraud and deceive. As a result, Plaintiff has suffered damages as described. (Complaint, ¶¶226-230.)

“The elements of fraud that will give rise to a tort action for deceit are: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” [Citation.]” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; see Civ. Code, § 1710.)

Each element for causes of action that sound in fraud “must be pleaded with specificity. [Citation.] ‘The specificity requirements means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.’ [Citation.] However, ‘the requirement of specificity is relaxed when the allegations indicate that “the defendant must necessarily possess full information concerning the facts of the controversy” [citations] or “when the facts lie more in the knowledge of the” defendant. [Citation.] The specificity requirement serves two purposes: ‘to apprise the defendant of the specific grounds for the charge and enable the court to determine whether there is any basis for the cause of action.’ [Citation.]” (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166-1167, disapproved on another ground in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905; see *Small v. Fritz Companies Inc.* (2003) 30 Cal.4th 167, 184 [policy

of liberal construction of pleadings inapplicable to fraud causes of action].) The purpose of the requirement that fraud be pled specifically is to “provide [] enough information for respondents to know what purported falsehoods they must defend against. [Citation.]” (*Murphy v. BDO Seidman, LLP* (2003) 113 Cal.App.4th 687, 693.)

Defendant argues no facts are pled as to how Defendant allegedly knew of the purported issues, and the allegations are therefore vague and conclusory. Defendant further argues Plaintiff does not identify anyone who worked for or at Defendant’s direction who allegedly made the false misrepresentation or concealed information.

In opposition, Plaintiff concedes specificity is required but argues the rules are relaxed where relevant facts are within Defendant’s knowledge. Plaintiff argues she has adequately pled her fraud claim.

Plaintiff needs more details to plead a fraud claim. Although Plaintiff alleges misrepresentations were made, he never identifies who made them, when, by what means, etc. Similarly, Plaintiff does not explain with any level of specificity who specifically concealed the material facts, when they should have been disclosed, etc. The Court sustains the demurrer to the thirteenth cause of action with leave to amend. Again, more specificity could potentially save this claim.

Motions to Strike

A party may obtain punitive damages where he proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice:

- (1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct² which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

² “Despicable conduct” is essentially conduct that is so vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down upon and despised by ordinary decent people. (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

- (2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.
- (3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, §3294, subd. (a) and (c).)

In a motion to strike punitive damage allegations, the ultimate facts showing entitlement to such relief must be pled by the plaintiff that when read in context with the other facts alleged sufficiently plead the evil motive required to recover punitive damages. (*Clauson v. Superior Court*, *supra*, 67 Cal.App.4th at p. 1255; *Monge v. Superior Court (Crown Gibraltar Graphic Center, Inc.)* (1986) 176 Cal.App.3d 503, 510.) Facts of oppression, fraud, or malice must be alleged. (*Grieves v. Superior Court (Fox)* (1984) 157 Cal.App.3d 159, 166.)

To impose punitive damages against a corporate employer, the plaintiff must establish one of the following: (i) the employer had advance knowledge of the unfitness of the employee and employed him with a conscious disregard of the rights or safety of others; (ii) the employer authorized or ratified the wrongful conduct; or (iii) was personally guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (b).) In actions against the corporate employer, these employer’s actions must be on the part of an officer, director, or managing agent.³ (Civ. Code, § 3294, subd. (b).)

Defendant argues the claims for punitive damage are insufficiently pled because (a) there are no allegations to warrant punitive damages against a corporation; and (b) a landlord’s failure to remedy a defect or condition is insufficient to establish malice for the purpose of punitive damages.

³ Managing agent is more than a mere supervisory employee; he is “someone who exercise[s] substantial discretionary authority over decisions that ultimately determine corporate policy.” (*White v. Ultramar* (1999) 21 Cal.4th 563, 573; *Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167-68.)

In opposition, Plaintiff contends the complaint alleges the misconduct was authorized, ratified, or carried out by Defendant's officers, directors, and managing agents. Indeed, Plaintiff makes general allegations in this respect throughout the complaint. For example, in paragraph 47 Plaintiff alleges Defendants, individually and/or by and through an officer, director, or managing agent, authorized or ratified the conduct for which punitive damages are sought and/or are personally guilty of oppression and malice.

Defendant argues these allegations are insufficient at the pleading stage because no specific individual is identified, and no facts are pled to demonstrate Defendant as an entity encouraged, supported, or ratified the conduct of any particular individual. "When a defendant must produce evidence in defense of an exemplary damage claim; fairness demands that he receive adequate notice of the kind of conduct charged against him." (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) The allegations of corporate ratification/authorization are too vague under the circumstances to put Defendant on notice of the specific conduct charged against him, as no individual employee or agent is named in the complaint.

As for the sufficiency of allegations of malice, fraud, or oppression, Defendant cites to *McDonnell v. American Trust Co.* (1955) 130 Cal.App.2d 296 for the proposition that a landlord's refusal to fix a despite knowledge of the potential consequences, absent other facts, is insufficient to demonstrate malice. In *McDonnell*, the plaintiffs were tenants of a ground floor store in a multi-storied building in which the landlord defendant maintained sole control of the roof and roof drains. (*Id.* at p. 297.) The plaintiffs sought punitive damages after water entered their store, contending the defendant was aware of the dangerous condition in advance and that it could cause damage but failed to repair it. (*Id.* at pp. 298-299.)

The Court held punitive damages were inadequately pled because the plaintiff only pled “that defendant, aware of the defective condition and that such condition *could* cause damage, refused to repair.” (*Id.* at p. 300.) “Calling this a ‘wilful’ failure to repair was not the same as saying defendant acted with a wrongful personal intent to injure or in reckless disregard of the rights of others. Nor did the words ‘reckless and wilful acts’ add anything of significance, limited as they are by the words ‘as hereinabove particularly alleged.’” (*Ibid.*) The Court held at most, the allegations sounded in negligence. (*Ibid.*)

Here, however, the copious allegations allege more than mere knowledge that failure to remedy the conditions at the property *could* cause Plaintiff damage. Instead, Plaintiff alleges she notified Defendants about the numerous violations, but Defendants failed to correct them, allowing them to persist. (See, i.e., Complaint, ¶¶25-40.) The overall thrust of the complaint is that Defendant allowed Plaintiff to live in squalor and failed to take action to abate the numerous issues at the property. This is sufficient to allege oppressive conduct (“despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights”) at the pleading stage.

Nevertheless, the Court grants the motion to strike punitive damages with leave to amend for failure to sufficiently allege corporate ratification.

Rulings

The Court rules as follows:

1. As for Defendant’s demurrer:
 - a. Note the demurrer is withdrawn as to the fourth cause of action;
 - b. Overrule the demurrer to the ninth and twelfth causes of action; and

- c. Sustain the demurrer to the tenth, eleventh, and thirteenth causes of action with 15 leave to amend.
2. Grant Defendant's motion to strike punitive damage allegations with 15 days leave to amend.

Movant to give notice.

Dated-

Judge